SOFTWARE AND SERVICES AGREEMENT

This Software and Services Agreement (the "**Agreement**") is made on 1 October 2026.

BETWEEN

(1) **AWANBIRU SOFTWARE SDN. BHD.** (Company No. SAMPLE-MY-0501), a company incorporated in Malaysia with its registered office at Suite 15-3, Menara Contoh, Jalan Contoh Sentral, 50470 Kuala Lumpur, Malaysia (the "**Vendor**"); and

(2) **PANTAI TIMUR HOME LIVING SDN. BHD.** (Company No. SAMPLE-MY-0502), a company incorporated in Malaysia with its registered office at No. 5, Jalan Contoh 2, 20000 Kuala Terengganu, Terengganu, Malaysia (the "**Customer**").

BACKGROUND

(A) The Vendor provides a cloud-hosted inventory and order management platform for retailers (the "**Platform**"), together with implementation and support services.

(B) The Customer operates six home furnishing stores on the east coast of Peninsular Malaysia and an online store, and wishes to use the Platform across its business.

(C) The Parties have agreed the terms on which the Vendor will provide the Platform and services to the Customer.

1. DEFINITIONS

1.1 In this Agreement:

"**Business Day**" means a day other than a Saturday, Sunday or public holiday in Kuala Lumpur or Terengganu.

"**Customer Data**" means all data, including personal data, that the Customer or its users upload to or create in the Platform.

"**Deliverables**" means the configuration, data migration scripts, reports and integrations created by the Vendor specifically for the Customer under an Order Form.

"**Fees**" means the subscription fees and service fees set out in the Order Form.

"**Go-Live Date**" means the date on which the Platform is made available to the Customer for live use, as confirmed in writing by both Parties.

"**Order Form**" means the order form signed by both Parties that refers to this Agreement, the first of which is attached as Schedule 1.

"**Services**" means access to the Platform, the implementation services and the support services described in the Order Form.

1.2 If there is a conflict between this Agreement and an Order Form, this Agreement prevails unless the Order Form expressly states otherwise.

2. SERVICES

2.1 The Vendor shall provide the Services in accordance with this Agreement and the Order Form.

2.2 The Vendor shall make the Platform available at least 99.5% of each calendar month,

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excluding scheduled maintenance notified at least three (3) Business Days in advance and carried out outside the Customer's trading hours. If availability falls below that level, the Customer is entitled to the service credits in Schedule 2.

2.3 The Customer shall provide the information, access and cooperation reasonably requested by the Vendor to perform the implementation services.

3. TERM AND RENEWAL

3.1 This Agreement starts on the date above. The initial subscription term is twelve (12) months from the Go-Live Date (the "**Initial Term**").

3.2 After the Initial Term, the subscription renews for further periods of twelve (12) months each, unless either Party gives the other written notice of non-renewal at least thirty (30) days before the end of the then-current term. The Vendor shall send the Customer a written reminder of the renewal date not less than sixty (60) days before it.

3.3 The Vendor may change the subscription fees for a renewal term by giving at least sixty (60) days' written notice before the renewal date, provided that any increase does not exceed the annual change in the Consumer Price Index for Malaysia published by the Department of Statistics Malaysia plus three per cent (3%). If the Customer does not accept the change, it may give notice of non-renewal at any time before the renewal date.

4. FEES AND PAYMENT

4.1 The Customer shall pay the Fees set out in the Order Form. Subscription fees are invoiced quarterly in advance from the Go-Live Date. Implementation fees are invoiced on the milestones in the Order Form.

4.2 The Customer shall pay each correct invoice within thirty (30) days of receipt. All Fees are exclusive of service tax, which shall be added where applicable.

4.3 If the Customer disputes any part of an invoice in good faith, it shall notify the Vendor within fourteen (14) days with reasons and pay the undisputed part. The Parties shall work together to resolve the dispute promptly.

4.4 The Vendor may charge interest on undisputed amounts that remain unpaid fourteen (14) days after a written reminder, at the rate of one per cent (1%) per month, calculated daily.

5. INTELLECTUAL PROPERTY

5.1 The Vendor retains all intellectual property rights in the Platform, its software, documentation and any tools and know-how used to provide the Services.

5.2 Ownership of the Deliverables passes to the Customer on payment of the Fees for the relevant Deliverable. To the extent any Deliverable includes Vendor tools or Platform components, the Vendor grants the Customer a non-exclusive, perpetual, royalty-free licence to use them as part of that Deliverable for the Customer's internal business purposes.

5.3 The Customer retains all rights in the Customer Data. The Vendor may use Customer Data only to provide the Services under this Agreement.

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6. WARRANTIES

6.1 The Vendor warrants that:

(a) the Services will be performed with reasonable skill and care, by suitably qualified personnel, in accordance with good industry practice;

(b) the Platform will perform materially in accordance with its documentation; and

(c) the Deliverables will conform to the specification in the Order Form for ninety (90) days after acceptance, and the Vendor will correct any non-conformity reported in that period at no extra charge.

6.2 Except as stated in this Agreement, all other warranties are excluded to the extent permitted by law.

7. CONFIDENTIALITY

7.1 Each Party shall keep confidential all information of the other Party that is marked as confidential or would reasonably be considered confidential, use it only to perform this Agreement, and disclose it only to its employees, contractors and advisers who need to know it and who are bound by similar duties.

7.2 Clause 7.1 does not apply to information that is or becomes public through no fault of the receiving Party, was already lawfully known to it, is lawfully received from a third party, or is independently developed. A Party may disclose information where required by law, after giving notice to the other Party where lawful.

7.3 This Clause 7 continues for three (3) years after this Agreement ends. Neither Party shall name the other publicly as a customer or supplier without prior written consent.

8. DATA PROTECTION

8.1 The Customer is the data controller (data user) of personal data in the Customer Data, and the Vendor processes it on the Customer's behalf. Each Party shall comply with the Personal Data Protection Act 2010 (Malaysia).

8.2 The Vendor shall: (a) process personal data only on the Customer's documented instructions and only to provide the Services; (b) implement appropriate technical and organisational security measures, as described in Schedule 3; (c) notify the Customer without undue delay, and in any event within forty-eight (48) hours, after becoming aware of a personal data breach; (d) use subcontractors only after notifying the Customer and on terms no less protective; and (e) not transfer personal data outside Malaysia without the Customer's prior written consent.

8.3 Within thirty (30) days after this Agreement ends, the Vendor shall make the Customer Data available for export in a standard format and then delete it, and confirm the deletion in writing.

9. LIMITATION OF LIABILITY

9.1 Neither Party excludes or limits liability for fraud, for death or personal injury caused by its negligence, or for any liability that cannot be limited by law.

9.2 Subject to Clauses 9.1 and 9.4, each Party's total liability to the other under or in connection with this Agreement in any twelve (12) month period is limited to the total Fees paid or payable

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by the Customer in the twelve (12) months before the event giving rise to the claim.

9.3 Neither Party is liable to the other for any loss of profits, loss of business or any indirect or consequential loss.

9.4 Each Party's liability for breach of Clause 7 (Confidentiality) or Clause 8 (Data Protection), and the Vendor's liability under Clause 10.1, is limited to three (3) times the amount in Clause 9.2. The Customer's obligation to pay Fees properly due is not limited by this Clause 9.

10. INDEMNITIES

10.1 The Vendor shall indemnify the Customer against any third-party claim that the Platform or the Deliverables infringe that third party's intellectual property rights, and against the damages and reasonable costs finally awarded or agreed in settlement of such claim.

10.2 The Customer shall indemnify the Vendor against any third-party claim that Customer Data, as supplied by the Customer, infringes that third party's rights or breaches applicable law.

10.3 A Party seeking an indemnity shall notify the other Party promptly, allow it to control the defence and settlement of the claim, and give reasonable cooperation at the indemnifying Party's cost. No indemnity applies to the extent a claim arises from the indemnified Party's own breach or negligence.

11. TERMINATION

11.1 Either Party may terminate this Agreement by written notice if the other Party commits a material breach and fails to remedy it within thirty (30) days of written notice, or if the other Party becomes insolvent, enters into liquidation or has a receiver appointed.

11.2 The Customer may terminate this Agreement for convenience by giving the Vendor sixty (60) days' written notice, provided that it pays for Services provided up to the termination date. The Vendor shall refund any prepaid subscription fees for the period after termination.

11.3 On termination the Vendor shall provide reasonable assistance to transfer the Customer Data to the Customer or a replacement provider, at the Vendor's standard rates where the assistance goes beyond the export in Clause 8.3.

11.4 Clauses 5, 7, 8, 9, 10 and 12 survive termination.

12. GOVERNING LAW AND DISPUTE RESOLUTION

12.1 This Agreement is governed by the laws of Malaysia.

12.2 Any dispute shall first be referred to the Parties' project managers and then, if not resolved within ten (10) Business Days, to a director of each Party. If the dispute is still not resolved within a further ten (10) Business Days, either Party may refer it to mediation at the Asian International Arbitration Centre in Kuala Lumpur.

12.3 If mediation does not resolve the dispute within sixty (60) days, either Party may bring proceedings in the courts of Malaysia. The Vendor shall continue to provide the Services during any dispute, provided the Customer continues to pay undisputed Fees.

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13. GENERAL

13.1 Neither Party may assign this Agreement without the other's prior written consent, not to be unreasonably withheld, except to a successor to its whole business.

13.2 Neither Party is liable for delay caused by events beyond its reasonable control, provided it notifies the other promptly and takes reasonable steps to limit the delay.

13.3 This Agreement, with its Schedules and Order Forms, is the entire agreement between the Parties about its subject matter. Any amendment must be in writing and signed by both Parties.

13.4 Notices must be in writing and sent to the addresses above, or to an email address notified for that purpose.

SIGNATURES

Signed for and on behalf of **AWANBIRU SOFTWARE SDN. BHD.**

Signature: _____

Name: _____ Designation: Chief Executive Officer

Date: _____

Signed for and on behalf of **PANTAI TIMUR HOME LIVING SDN. BHD.**

Signature: _____

Name: _____ Designation: Director

Date: _____

Schedules 1 (Order Form), 2 (Service Credits) and 3 (Security Measures) are provided separately and form part of this Agreement.

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